

**SOLE SOURCE JUSTIFICATION FOR AN ACTION EXCEEDING THE SIMPLIFIED
ACQUISITION THRESHOLD USING SIMPLIFIED PROCEDURES FOR CERTAIN
COMMERCIAL ITEMS IN ACCORDANCE WITH FEDERAL ACQUISITION
REGULATION (FAR) 13.501(a), 41 U.S.C. 1901**

1. Identification of the agency and contracting activity.

The U.S. Department of Energy (DOE) Headquarter Procurement Services, located in Washington, DC, proposes to enter into a contract on the basis of other than full and open competition with S&P Global Commodity Insights (formerly Platts) for its Petroleum Industry Research Associates, Inc. (PIRA) Global Crude Oil and Petroleum Products Retainer and related services. This action is in support of the U.S. Energy Information Administration (EIA), Office of Energy Analysis (OEA). This document sets forth the justification and approval for the use of a sole source acquisition found at Federal Acquisition Regulation (FAR) Subpart 13.5 and in accordance with 41 U.S. Code § 1901 and FAR Subpart 13.5 procedures.

2. The nature and/or description of the action being approved, i.e., sole source under procedures for certain commercial items in accordance with FAR 13.5.

DOE intends to award a Firm-Fixed-Price (FFP) order to S&P Global Commodity Insights consisting of a base year (estimated to be from February 5, 2025 to February 4, 2026), and four one-year options beginning February 5, 2026 through February 4, 2030.

EIA requires an order with S&P Global Commodity Insights to procure full membership for up to 25 seats for PIRA Global Crude Oil and Petroleum Products Retainer and subscription related services.

Contract Awardee Information:

- **Company Name:** S&P Global, Inc. (dba S&P Global Commodity Insights, large business)
- **Company Address:** 2 Penn Plaza, 25th Floor, New York, NY 10121
- **Unique Entity ID (UEI):** KQ8HAWRKG8F1
- **CAGE Code:** 712E5

3. Description of Supplies/Services required to meet the Agency's Needs including the estimated value.

The requirement consists of a subscription to a full membership to online services for the following:

Global Crude Oil and Petroleum Products Retainer Service

- A. World Oil Market Forecast.** Sent to clients at the end of each month, the World Oil Market Forecast presents PIRA's short- and medium-term outlook for world crude and petroleum product markets. Price forecasts (12-18 months out) are provided for West Texas Intermediate (WTI) and Brent crude, as well as for

petroleum products at United States Gulf Coast (USGC) and New York Harbor (NYH). A comprehensive overview of the underlying supply/demand fundamentals is also provided, along with any changes to PIRA's world oil balances, including Organization of the Petroleum Exporting Countries (OPEC) crude production, non-OPEC oil supply, world stocks, and global demand.

B. DOE Weekly Analysis. Sent to clients every Wednesday after the U.S. Department of Energy releases its "Weekly Petroleum Status Report," this report provides PIRA's market perspective and analysis of the most recent U.S. crude oil and petroleum product supply, demand, and inventory data.

C. Current News & Analysis. PIRA provides timely, insightful reports on market-moving events that cover world and regional oil markets, as well as OPEC-member country developments. More than just covering the facts, these reports analyze the effects these events have on fundamentals and what they mean for oil price trends. Special attention is paid to results of OPEC meetings, where PIRA typically has a consultant on site to provide clients an up to date, "on-the-ground" recap and analysis of the ministers' decisions. Current News and Analysis items include "Bulletins," which are brief assessments or data presentations covering topics that are of immediate market relevance and can influence trading strategy. PIRA quarterly monitor reports cover:

- Iraq
- China demand
- India demand
- Asia-Pacific market forecast
- European market forecast
- Japan (weekly)

D. Global Crude Oil and Petroleum Products Annual Retainer Client Seminar. Held every October in New York, the Seminar presents PIRA's medium- and long-term view of oil, natural gas, and electricity markets. The Seminar also examines the major structural changes expected in various world energy markets. The event is an opportunity for clients and PIRA's staff to engage in dialogue on energy markets, as well as an ideal time for industry colleagues to connect with one another.

E. World Petroleum Demand Monitor. This monthly slide show tracks the latest global demand for light and heavy products. It covers historical data back to 2001, as well as demand for specific products, including total demand for all major products compared to the demand for light and heavy petroleum products.

F. World Petroleum Product Yield Monitor. This quarterly slide show monitors crude oil runs and refinery product yields for 38 countries. Highlights include: year-on-year changes in crude runs and refinery yields, product output divided by crude runs for gasoline, naphtha, kerosene-jet, gasoil/diesel, and heavy fuel oil.

Detailed summary charts and data tables are included.

- G. U.S. Refinery Turnaround Schedules.** Published twice a year (late summer and at year-end), this confidential survey of the U.S. refining industry's turnaround plans is presented by Petroleum Administration for Defense Districts (PADD).
- H. Weekly U.S. Rig Monitor.** Published on Fridays, the report—along with a supporting Excel data file—provides a detailed summary of U.S. oil and gas drilling activity in selected plays and regions since February 2011.
- I. Fracking Policy Monitor.** This quarterly report examines the latest U.S. policy developments at the local, state, and federal level. The analysis underpins PIRA's fundamental assessments of future prospects for liquids and gas from fracking, which are critical to both short- and longer-term balances for North American gas and, to an increasing extent, North American and global oil. Highlights include: regulatory actions, legislative initiatives, court rulings, trends in public opinion and scientific studies that influence future production.
- J. Oil Bulletins and OPEC Logs.** These short, timely reports, delivered on an "as events dictate" basis cover topics of immediate importance relating to breaking oil market developments and input from OPEC meetings (often attended by PIRA consultants), along with how these affect PIRA's market outlook.
- K. Global Oil Special Reports.** These periodic reports deliver more in-depth analytical views of ongoing developments and medium-term trends in the global oil market. Highlights include: regular economic recaps, an annual North Sea production forecast and coverage of political events that may affect the oil market.
- L. Global Political Risk Alerts.** Sent "as events dictate," risk alerts are insightful assessments of regional or global political events with the potential to alter short- and long-term market prices or trends.
- M. Weekly Country Risk Scorecard.** This one-page scorecard tracks political developments in major oil producing and consuming countries, while assessing price impact (bullish, neutral, bearish).
- N. Global Political Risk Strategy Papers and Special Reports.** These periodic reports identify emerging trends such as overseas investment patterns, royalty regime changes, and U.S. Congressional policy direction. Highlights include: in-depth analysis of emerging political and regulatory trends and outlook for supply/demand and global investment climate.
- O. Global Political Risk Stability Index.** The annual Global Political Risk (GPR) Stability Index report measures economic, political, and social risks in 35 key countries.

P. PIRA Online is the gateway to timely and convenient access to all of PIRA's latest reports (and archives thereof), databases, and interactive "portals." PIRA Online highlights include: the Energy Price Portal and PIRA's Equation Manager, which allows clients to interact with PIRA's price data sets; the latest retainer reports (and an archive thereof); data for production, stocks, exports, imports, demand, refinery margins/turnarounds, and light product balances; as well as historic data and updates on New York Mercantile Exchange (NYMEX) activity.

Q. The Energy Price Portal is a key feature of PIRA Online, the Energy Price Portal allows users quick and easy access to PIRA's latest price forecasts for 30 worldwide crudes and 90 worldwide petroleum product prices - including the ability to create and store custom price spreads.

The Energy Price Portal also features PIRA's Equation Manager, a specially designed utility that allows users to define, analyze and store up to 100 custom price spreads in the form of multi-variable equations using PIRA's forecast prices.

Anticipated Dollar Value of the Proposed Acquisition.

YEAR	PERIOD OF PERFORMANCE	ESTIMATED VALUE
Base Year	February 5, 2025 to February 4, 2026	
Option Year 1	February 5, 2026 to February 4, 2027	
Option Year 2	February 5, 2027 to February 4, 2028	
Option Year 3	February 5, 2028 to February 4, 2029	
Option Year 4	February 5, 2029 to February 4, 2030	
GRAND TOTAL:		

4. An identification of the statutory authority permitting the sole source acquisition.

The statutory authority permitting the sole source acquisition is 41 U.S. Code § 1901 as implemented by FAR 13.501(a).

5. Determination that proposed Contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

S&P Global Commodity Insights is the proprietary owner of the PIRA Global Crude Oil and Petroleum Products Retainer and PIRA product services. PIRA is a recognized leading international oil market analytic group that provides constantly updated analysis of world crude oil and petroleum product markets through a series of deliverables that offer unsurpassed market intelligence and fundamental analysis of oil market developments, including supply/demand insight, price forecasts, online databases, and superior follow-up client servicing.

Other vendors, such as IHS and Hart Energy, do not provide a unique perspective on oil market economics, nor do they utilize as broad an approach, which draws on expertise from upstream supply issues, demand drivers, geopolitics, global economic conditions, and refinery economics. Further, the proprietary data offered by S&P Global Commodity

Insights are critical to properly address inquiries from EIA stakeholders on market disruptions, prices, and economic variables used for research and other emerging issues in energy. Losing access to this proprietary data and services would compromise EIA's ability to deliver on its congressional mandate to collect, analyze, and disseminate independent and impartial energy information to promote sound policymaking, efficient markets, and public understanding of energy and its interaction with the economy and the environment.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practical, including whether a notice was or will be publicized as required by Subpart 5.2 and if not, which exception under 5.202 applies.

The DOE Procurement Services/MA-642.1 Contracting Officer posted a notice of intent to sole source to System for Award Management (SAM), as required by FAR 5.2, on December 18, 2024 to ensure offers are solicited from as many potential sources as practicable for this sole source FFP type contract. No other vendor responded to the notice of intent by the time of its closing on January 2, 2025.

7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

No award shall be made until the Contracting Officer determines the cost to the Government to be fair and reasonable. This determination will be based on a comparison of the proposed price with prices found reasonable on previous purchases and market research.

8. A description of the market research conducted.

Market research was conducted to determine whether other sources of this data exist. First, EIA made inquiries to S&P Global Commodity Insights about vendors authorized to sell its PIRA subscription and S&P Global Commodity Insights responded with a letter on December 19, 2024 stating the required web-based subscription was solely provided by S&P Global Commodity (i.e., no authorized reseller available). Second, on December 18, 2025, a notification of this proposed contract action was posted to SAM.gov with a closing date of January 2, 2025. This was an opportunity for vendors other than S&P Global Commodity Insights to reach out to EIA with their capability statements. No responses were received by the closing date.

Finally, as a purchaser of myriad data to satisfy its agency mission, EIA continuously conducts market research for new data providers. Should this research reveal any other vendors that can offer the same breadth of real-time data, analyses, tools, research, and articles as S&P Global Commodity Insights, then the requirement will be competed.

9. Other facts supporting the use of Sole Source Justification.

N/A.

10. A statement of actions, if any, that were taken to remove or overcome any barriers to competition.

No other vendors have been identified as capable of providing the unique detailed real-time data, research, articles, and systems/tools that are supplied by S&P Global Commodity Insights and currently required for EIA to meet its congressionally mandated requirements for reports and publications. However, as noted above, EIA continuously conducts market research for new data providers and if this research reveals any other vendors that can offer the same breadth of real-time data, analyses, tools, research, and articles as S&P Global Commodity Insights, then the requirement will be competed.

(PAGE INTENTIONALLY LEFT BLANK)

CERTIFICATION

I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED] Contracting Officer's Representative

Date

REVIEWS AND APPROVALS

I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]
Contracting Officer

Date

Approval:

[REDACTED]

[REDACTED]
Procuring Activity Competition Advocate

Date

[REDACTED]